

Vendor Disclosure & Contract Checklist — ACT

Your obligations as a seller.

Correct as at July 2026. General information only, not legal advice. Your contract should be prepared with a conveyancer or solicitor — this checklist helps you gather what they'll need, not replace their advice.

Section 1 — Understanding Your Disclosure Obligations

- ☐ [] **Know ACT sale contracts require disclosure documents to be attached before signing.** Your conveyancer or solicitor will confirm exactly what's required for your specific property, but this generally includes matters like title details, lease terms, and known encumbrances.
- ☐ [] **Understand you're selling leasehold, not freehold, title** — disclosure should accurately reflect the terms of the Crown lease.
- ☐ [] **Work with your conveyancer to prepare the contract properly before marketing begins.**

Section 2 — Information to Gather for Your Conveyancer/Solicitor

- ☐ [] **Crown lease details and any encumbrances** — mortgages, easements, covenants affecting the property.
- ☐ [] **Zoning and planning information.**
- ☐ [] **Known building work history and any relevant approvals.**
- ☐ [] **Owners corporation records**, if applicable — recent meeting minutes, financials, sinking fund details, and known disputes or special levies.
- ☐ [] **Any known defects or issues** you're aware of, even if not immediately obvious — full disclosure protects you from post-settlement disputes.
- ☐ [] **Any historical asbestos assessments**, if relevant to your property's age and history.

Section 3 — Understanding Your Buyer's New Financial Position

- ☐ [] **Understand many prospective buyers may now be eligible for the ACT's new stamp duty abolition** (first home buyers, or buyers of new unit-titled property) — this can affect buyer budgets and interest levels, and your agent's marketing strategy should account for this.

Section 4 — Underquoting and Price Transparency

- ☐ [] **Discuss price guide practices with your agent** to ensure representations to prospective buyers are genuine and well-supported.
- ☐ [] **Don't ask your agent to advertise a misleadingly low price to generate interest.**

Section 5 — Final Checks Before Going to Market

- ☐ [] **Confirm your contract and disclosure documents are complete and reviewed by your conveyancer** before your first open home.
- ☐ [] **Cross-check the contract against your own knowledge of the property** — flag any inconsistency with your conveyancer immediately.
- ☐ [] **Keep a copy of everything provided to buyers.**

Quick Reference — ACT Vendor Disclosure Essentials

Requirement	Key Detail
Contract preparation	Conveyancer/solicitor, before marketing begins
Land tenure	Leasehold (Crown lease), disclosure should reflect this
Owners corporation records	Required if applicable — gather early
Buyer stamp duty exemption	May apply broadly since 1 July 2026 — relevant to buyer demand

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